

26STCP01707 26STCP01707

County: los-angeles

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Case Number: 26STCP01707 Hearing Date: September 4, 2026 Dept: 26

TENTATIVE RULING:

Petitioner Directors Guild of

America, Inc.'s Petition to Confirm

Arbitration Award is granted in the amount of \$14,825.00 residuals, \$3,188.00 in late charges as of June 16, 2025, accruing late charges at the rate of \$4.87 per day through the date of judgment, and \$350.00 for the Arbitrator's fees and expenses. Costs of suit are awarded according to proof.

Petitioner is entitled to receive

all of Respondent's accounts receivable from the motion picture "A Christmas Witness" until the award is paid in full. Petitioner is permitted to give notice of Petitioner's entitlement to those accounts receivable to any entity from which Respondent's accounts receivable are or will be or may be due.

Petitioner is to file and serve a

proposed judgment that conforms to this order.

Analysis:

On May 1, 2026, Petitioner Directors Guild of America, Inc.

("Petitioner") filed the instant Petition to Confirm Arbitration Award (the "Petition") against Respondent ROC Media Group, LLC ("Respondent"). This action arises out of the parties' dispute over residuals owed to employees represented by Petitioner for the production of a theatrical motion picture entitled "A Christmas Witness." (Pet., ¶¶4-5.) No response to the Petition has been filed to date.

Legal Standard

“Any party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate the award. The petition shall name as respondent all parties to the arbitration and may name as respondents any other persons bound by the arbitration award.” (Code Civ. Proc., § 1285.) “If a petition or response under this chapter is duly served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding.” (Code Civ. Proc., § 1286.)

A response to a Petition to Confirm Arbitration Award that seeks to vacate or correct the award must be served and filed no later than 100 days after the date of the service of a signed copy of the award on the respondent, or within ten days of service of the Petition to Confirm, whichever is sooner. (Code Civ. Proc., §§ 1288.2, 1290.6; Valencia v. Mendoza (2024)103 Cal. App. 5th 427, 445).)

Discussion

Service of the Petition and Notice of Hearing

Code of Civil

Procedure, section 1290.4 requires that the petition and notice of hearing be served on Respondent “in the manner provided in the arbitration agreement for the service of such petition and notice” or “[i]f the arbitration agreement does not provide the manner in which such service shall be made . . . [s]ervice within this State shall be made in the manner provided by law for the service of summons in an action.” (Code Civ. Proc., § 1290.4, subds. (a), (b).)

Petitioner filed a proof of service showing that the Petition and Notice of Hearing were served on Respondent on May 1, 2025 by certified mail with return receipt requested. (Proof of Service by Mail, filed 05/19/26.) Service by certified mail with return receipt requested is permitted under the parties' agreement. (Pet., Exh. A, § 2-603, subd. (b).) Therefore, the Court finds that the requirements of Code of Civil Procedure section 1290.4 have been met.

Service of the Arbitration Award (CCP § 1283.6)

Code of Civil

Procedure section 1283.6 requires that "[t]he neutral arbitrator shall serve a signed copy of the award on each party to the arbitration personally or by registered or certified mail or as provided in the agreement." (Code Civ. Proc., § 1283.6.) This requirement may be satisfied by service by the arbitrator, or upon proper service of the award with the petition. (See *Murray v. Civil Service Employees Ins. Co.* (1967) 254 Cal.App.2d 796, 799-800.) The arbitration award was served on the parties on March 24, 2026. (Pet., Exh. B, p. 4).)

Confirmation of the Arbitration Award

An arbitration award

is not directly enforceable until it is confirmed by a court and judgment is entered. (Code Civ. Proc. § 1287.6; *Jones v. Kvistad* (1971) 19 Cal.App.3d 836, 840.) The court must confirm the award as made, unless it corrects or vacates the award, or dismisses the proceeding. (CCP § 1286; *Valsan Partners Limited Partnership v. Calcor Space Facility, Inc.* (1994) 25 Cal.App.4th 809, 818.) Code of Civil Procedure, section 1285.4 states a petition under this chapter shall:

a)

Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement.

b)

Set forth the names of the arbitrators.

c)

Set forth or have attached a copy of the award and the written opinion of the arbitrators, if any.

(Code Civ. Proc., § 1285.4.) The

Petition complies with these requirements. It sets forth the nature of the arbitration agreement, the name of the arbitrator, and attaches a copy of the arbitration award. (Pet., ¶¶3-6 and Exh. B.) The award provides that the arbitrator awarded Petitioner residuals of \$14,825.00 and \$3,188.00 in late

charges as of June 16, 2025. (Pet., Exh. B, p. 3.) The late charges continue to accrue at \$4.87 per day on the unpaid balances thereafter until the residuals are paid in full. (Ibid.) The award also provides that Petitioner is entitled to receive all of Respondent's accounts receivable from the motion picture "A Christmas Witness" until the award is paid in full. (Ibid.) Petitioner is entitled to give notice of Petitioner's entitlement to those accounts receivable to any entity from which Respondent's accounts receivable are or will be or may be due. (Ibid.) Finally, Respondent shall pay half of the Arbitrator's fees and expenses for a total of \$350.00, out of the Arbitrator's daily fees and expenses of \$2800.00, which shall be advanced by Petitioner and recouped from Respondent. (Ibid.) Therefore, the arbitration award is confirmed in favor of Petitioner in these amounts.

Attorney's Fees,
Costs and Interest

To the extent Petitioner requests costs of suit, they are permitted on a petition to confirm arbitration award. (Code Civ. Proc., § 1293.2; MBNA America Bank, N.A. v. Gorman (2006) 147 Cal.App.4th.Supp. 1, 7.) Petitioner may file a memorandum of costs pursuant to Cal. Rules of Court Rule 3.1700.

Conclusion

Petitioner Directors Guild of
America, Inc.'s Petition to Confirm
Arbitration Award is Granted in the amount of \$14,825.00 residuals, \$3,188.00 in late charges as of June 16, 2025, accruing late charges at the rate of \$4.87 per day through the date of judgment, and \$350.00 for the Arbitrator's fees and expenses. Costs of suit are awarded according to proof.

Petitioner is entitled to receive
all of Respondent's accounts receivable from the motion picture "A Christmas Witness" until the award is paid in full. Petitioner is permitted to give notice of Petitioner's entitlement to those accounts receivable to any entity from which Respondent's accounts receivable are or will be or may be due.

Petitioner is to file and serve a
proposed judgment that conforms to this order.

Moving party is to give notice.